

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Probate Notes

2025PRDE053835: IN THE MATTER OF MARSHA BIRNBAUM

09/16/2026 in Department J6

Hearing on Petition for Waiver of Accounting and Final Distribution Report of Executor

Notice is insufficient. DE-120 served by mail on 06/16/26 (Probate Code 11000) Petitioner is both the executor and the trustee of the Marsha Birnbaum Living Trust. Notice is required to all the beneficiaries of a trust named in the will in which the trustee and the PR are the same person. (See PC § 1208(b).)

Exhibit C lists all the beneficiaries. Madeline Birnbaum is listed as a beneficiary of the trust. Notice has been given to Medeline Birnbaum c/o of Bret Birnbaum.

Notice in a probate matter is direct notice. (See CRC rule 7.51(a)) Notice to a minor must be sent directly to the minor. A separate copy of the notice must be sent to the person or persons having legal custody of the minor, with whom the minor resides. (CRC rule 7.51(d))

Waiver of Account is insufficient. Petitioner states Elesia Kreinces, as Trustee of the Marsha Birnbaum Living Trust dated May 30, 2015, is the person entitled to distribution of all of the estate, waives an account by petitioner, and the waiver of the distributee will be filed prior to the hearing on this petition.

The trustee has not filed a written acceptance of trust as required by a trustee who waives an accounting. (Probate Code section 10954(b)(4))

The court intends to continue the hearing to 11/05/26 at 9:00 a.m. in Department J6 for petitioner to file a statutorily sufficient service of notice and a statutorily sufficient waiver of accounting.